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PART 1231—TRANSFER OF RECORDS FROM THE CUSTODY OF ONE EXECUTIVE AGENCY TO ANOTHER

Authority: [44 U.S.C. 2908](#).

Source: [74 FR 51014](#), Oct. 2, 2009, unless otherwise noted.

§ 1231.1 What is the authority for part 1231?

The authority for this part is [44 U.S.C. 2908](#).

§ 1231.2 What definitions apply to this part?

See [§ 1220.18 of this subchapter](#) for definitions of terms used throughout Subchapter B, including this part.

§ 1231.10 Who has the authority to approve the transfer of records from the custody of one executive agency to another?

NARA must approve in writing the transfer of records from the custody of one executive agency to another, except as provided in [§ 1231.18\(a\)](#).

§ 1231.12 How do executive agencies request to transfer records to another executive agency?

An executive agency that proposes to transfer records to another agency must request approval of the transfer of records in writing from NARA, by mail at National Archives and Records Administration; Office of the Chief Records Officer (AC); 8601 Adelphi Road; College Park, MD 20740-6001, or by email at RM.Communications@nara.gov. The request must include:

- (a) A concise description of the records to be transferred, including the volume in cubic feet;

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- (b) A statement of the restrictions imposed on the use of records;
- (c) A statement of the agencies and persons using the records and the purpose of this use;
- (d) A statement of the current and proposed physical and organizational locations of the records;
- (e) A justification for the transfer including an explanation of why it is in the best interests of the Government; and
- (f) Copies of the concurrence in the transfer by the heads of all agencies involved in the proposed transfer.

[74 FR 51014, Oct. 2, 2009, as amended at 83 FR 13654, Mar. 30, 2018]

⦿ **§ 1231.14 May the records of terminated agencies be transferred to another agency?**

The records of executive agencies whose functions are terminated or are in process of liquidation may be transferred to another executive agency that inherits the function. All such transfers must be made in accordance with the provisions of this part.

⦿ **§ 1231.16 What restrictions are there on use of transferred records?**

Restrictions imposed under a statute or Executive order must continue to be imposed after the transfer. Restrictions imposed by agency determination must also continue, unless the restrictions are removed by agreement between the agencies concerned.

⦿ **§ 1231.18 When are records transferred between executive agencies without NARA approval?**

Records are transferred between executive agencies without NARA approval when:

- (a) Records are transferred to a NARA or agency-operated records center or to the National Archives of the United States in accordance with [Parts 1232, 1233, and 1235 of this subchapter](#);
- (b) Temporary records are loaned for official use;
- (c) The transfer of records or functions or both is required by statute, Executive Order, Presidential reorganization plan, or Treaty, or by specific determinations made thereunder;
- (d) The records are transferred between two components of the same executive department; or
- (e) Records accessioned into the National Archives of the United States are later found to lack sufficient value for continued retention in the National Archives. The disposition of such records is governed by [§ 1235.34 of this subchapter](#).

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